

of sub-sect. (5) does not meet that test, and that the devolution of the moneys arising from personal chattels will remain unaffected by the sale.¹

24. Receipts.—By sect. 40, the receipt in writing of the trustees of a settlement, or where one trustee is empowered to act, of one trustee, or of the personal representatives or representative of the last surviving or continuing trustee, for any money or securities paid or transferred to them or him is made a good discharge, and, in the case of a mortgagee or other person advancing money, exonerates him from being concerned to see that the money advanced is wanted for any purpose of the Act, or that no more than is wanted is raised.

In construing this section, sect. 39 must be borne in mind, which expressly prohibits the payment of capital money to fewer than two persons as trustees of a settlement, unless the settlement otherwise provides; and, taking the two sections together, it seems to follow, that, in the absence of any special direction in the settlement, a sole personal representative of the last surviving or continuing trustee cannot give a good discharge for capital money under the Act.

25. Indemnity and reimbursement.—Sects. 41 & 43 supply the usual indemnity and reimbursement clauses for the trustees of the settlement.

26. Protection of trustees.—By sect. 42, the trustees of a settlement, or any of them, are not liable for giving any consent, or for not making, bringing, taking, or doing [*568] any such application, action, proceeding, or thing, * as they might make, bring, take, or do; and in case of purchase of land with capital money arising under the Act, or of an exchange, partition, or lease, are not liable for adopting any contract made by the tenant for life, or bound to inquire as to the propriety of the purchase, exchange, partition, or lease, or answerable as regards any price, consideration, or fine, and are not liable to see to or answerable for the investigation of the title, or answerable for a conveyance of land, if the conveyance purports to convey the land

¹ See *Re Duke of Marlborough's Settlement*, 1866, W. N. 1885, p. 136.